

SPOTO TERMS AND CONDITIONS FOR USERS

Effective Date: 1st November 2025

Welcome to **Spoto (Gigstryk Entertainment Private Limited)** , India's trusted platform for flexi rentals and vacation stays.

By accessing, browsing, or making a booking through our website, mobile app, or any related services ("Platform"), you agree to the following Terms and Conditions. Please read them carefully before proceeding.

MODIFICATION OF TERMS

Gigstryk reserves the right to change, modify, or update the terms, conditions, and notices under which the Services are offered through the Platform, including but not limited to changes in fees and charges for the Services provided through the Platform. The User shall be responsible for regularly reviewing these terms and conditions. Continued use of the Platform following any such changes constitutes acceptance of the revised terms.

1. Introduction

Spoto is an online marketplace that connects guests ("Users") with property owners or managers ("Hosts") offering short-term, long-term, or flexible rental accommodations across India.

Spoto provides the platform for discovery, communication, and secure payment processing — but does not own, operate, or manage any of the properties listed by Hosts.

2. Eligibility

By using Spoto, you confirm that:

- You are at least **18 years old** and legally capable of entering into binding agreements.
- You will use the platform solely for lawful and personal purposes.
- You will comply with all applicable local and national laws while using Spoto services.

3. Role of Spoto

Spoto acts as an **intermediary** between Guests and Hosts.

- The **Host** is solely responsible for maintaining, managing, and delivering the property as described in their listing.
- Spoto facilitates bookings and payments but **is not a real estate agent or property manager**.
- Listings, descriptions, pricing, and photos are provided by Hosts and are their responsibility.
- Spoto does not guarantee the accuracy of listings, amenities, or property quality, but may intervene in cases of verified fraud or misrepresentation.

4. Booking and Payments

- To confirm a stay, **full payment** must be made at the time of booking.
- Prices and availability are determined by Hosts and may change until a booking is confirmed.
- Once a Host accepts a booking request, the reservation becomes **confirmed and binding**.
- Spoto uses secure payment gateways to collect and hold payments until confirmation.

5. Cancellation and Refund Policy

All bookings made on Spoto are non-cancellable and non-refundable.

However:

- **If a Host declines or cancels** a booking request before confirmation, the **full amount will be refunded to the guest — typically processed within 48 hours** of cancellation.
- **If a Host cancels** a confirmed booking (including cases of overbooking), the guest will receive a **full refund** or may be offered an **alternative stay** by Spoto.
- **If a Host voluntarily agrees** to refund due to a guest-requested cancellation, Spoto will process the refund only after receiving written confirmation and refund authorization from the Host.
- Spoto does **not issue refunds directly** for guest-initiated cancellations under any circumstances.

No refund will be provided for:

- Guest no-shows
- Early check-outs
- Changes of mind or personal schedule changes
- Unsatisfactory experiences unless verified as fraudulent or materially misleading

6. Host Responsibility

Hosts are required to:

- Provide accurate and truthful property information, photos, amenities, and pricing.
- Maintain the property in good condition, safe, clean, and as described in the listing.
- Communicate promptly with guests regarding check-in, check-out, or property-related matters.
- Handle overbooking, cancellations, or issues directly and professionally.
- Issue refunds only in legitimate cases such as overbooking, listing errors, or booking declines.

7. Guest Responsibility

Guests agree to:

- Respect the property, house rules, and local laws during their stay.
- Avoid damage, nuisance, or illegal activities on the property.
- Accurately represent their booking details and number of guests.

- Compensate the Host for any property damage or rule violations caused during their stay.

8. Limitation of Liability

Spoto shall **not be held liable** for:

- The quality, safety, legality, or accuracy of any property listed.
- Loss, injury, damage, or expenses incurred during a stay.
- Any dispute between Guests and Hosts (although Spoto may mediate in good faith).
- Any indirect, incidental, or consequential losses arising from use of the platform.

9. Force Majeure

Neither Spoto nor the Host shall be liable for cancellations or delays caused by events beyond reasonable control, including but not limited to natural disasters, pandemics, government restrictions, strikes, or civil unrest.

10. Modifications to Terms

Spoto reserves the right to amend or update these Terms and Conditions at any time. All updates will be posted on the platform, and continued use of Spoto after any revision constitutes acceptance of the updated Terms.

11. Governing Law and Dispute Resolution

These Terms shall be governed by and construed in accordance with the laws of **India**. Any disputes arising from or related to the use of Spoto shall be resolved through **binding arbitration in Bengaluru, Karnataka**, in accordance with the Arbitration and Conciliation Act, 1996.

12. Contact Us

Gigstryk Entertainment Private Limited

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